

2.

CASE #	CASE NAME	HEARING NAME
CVRI2306811	MALCOLM vs SANTILLAN	MOTION TO VACATE DISMISSAL OF COMPLAINT

Tentative Ruling:

The motion is denied. Moreover, if the parties pursuant to their settlement agreement stipulated that the court retain jurisdiction over the parties to enforce the settlement pursuant to Code of Civil Procedure section 664.6, as claimed by the moving party, the dismissal does not affect moving party's ability to seek enforcement. Accordingly, there is no valid reason to vacate the dismissal.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2404633	DAVALOS vs WASTE MANAGEMENT COLLECTION AND RECYCLING, INC.	MOTION FOR SUMMARY JUDGMENT OR IN THE ALTERNATIVE SUMMARY ADJUDICATION

Tentative Ruling:

Defendant moves for summary judgment, or in the alternative, summary adjudication on the grounds there are no triable issues of material facts as to all 9 causes of action and Plaintiff's claim for punitive damages.

Plaintiff has not filed an opposition. Trial is currently set for September 4, 2026.

From commencement to conclusion, the party moving for summary judgment bears the burden of persuasion. (*Aguilar v. Atlantic Richfield Company* (2001) 25 Cal.4th 826, 855.) A defendant can meet the initial burden by showing that one or more elements of the causes of action cannot be established, or that there is a complete defense. (Code Civ. Proc., § 437c, subd. (p)(2).) To demonstrate that a cause of action cannot be established, the defendant must either negate an essential element of the plaintiff's cause of action or show that the plaintiff lacks evidence. (*Chavez v. Glock, Inc.* (2012) 207 Cal.App.4th 1283, 1301.) To negate an element, the defendant must establish that plaintiff's claim fails as a matter of law. (*Erikkson v. Nunnick* (2011) 191 Cal.App.4th 826, 849.) To demonstrate that the plaintiff lacks evidence, the defendant must show that the plaintiff does not possess and cannot reasonably obtain needed evidence. (*Aguilar, supra*, 25 Cal.4th at 855.) A defendant may not simply point to an absence of evidence but must show that the plaintiff cannot reasonably obtain such evidence. (*Gaggero v. Yura* (2003) 108 Cal.App.4th 884, 891.)

A motion for summary judgment should be granted if no triable issue exists as to any material fact and the moving party is entitled to a judgment as a matter of law. (*Kahn v.*